

(d) The legal claim here involved was not rendered "purely equitable" by the nature of the defenses interposed by petitioner. P. 479.

Judgment reversed and cause remanded for further proceedings.

Michael H. Egnal argued the cause for petitioner. With him on the briefs was *Wallace D. Newcomb*.

Owen J. Ooms argued the cause for respondents. With him on the briefs was *Mark D. Alspach*.

MR. JUSTICE BLACK delivered the opinion of the Court.

The United States District Court for the Eastern District of Pennsylvania granted a motion to strike petitioner's demand for a trial by jury in an action now pending before it on the alternative grounds that either the action was "purely equitable" or, if not purely equitable, whatever legal issues that were raised were "incidental" to equitable issues, and, in either case, no right to trial by jury existed.¹ The petitioner then sought mandamus in the Court of Appeals for the Third Circuit to compel the district judge to vacate this order. When that court denied this request without opinion, we granted certiorari because the action of the Court of Appeals seemed inconsistent with protections already clearly recognized for the important constitutional right to trial by jury in our previous decisions.²

At the outset, we may dispose of one of the grounds upon which the trial court acted in striking the demand for trial by jury—that based upon the view that the right to trial by jury may be lost as to legal issues where those issues are characterized as "incidental" to equitable issues—for our previous decisions make it plain that no such rule may be applied in the federal courts. In *Scott*

¹ *McCullough v. Dairy Queen, Inc.*, 194 F. Supp. 686.

² 368 U. S. 874.